

4 & 5 Geo. 5.
c 10.

(3) Where the relief in respect of estate duty afforded to the widow, lineal descendants, or lineal ancestors by section fifteen of the Finance Act, 1914, would be greater than that afforded to them in respect of estate duty by this section, the relief in respect of estate duty shall be that under the said section fifteen and not that under this section, but in other cases the relief afforded by the said section fifteen shall not apply to any estate duty to which this section applies.

Remission of
estate duty in
respect of
property
passing more
than once
owing to
deaths caused
by the war.

2.—(1) Where the Commissioners of Inland Revenue are satisfied that estate duty has become payable on any property passing on the death of any person to which section one of this Act applies, and that subsequently estate duty has again become payable on the same property or any part thereof passing on the death of some other person to which section one of this Act applies, the whole of the estate duty payable on such subsequent death in respect of the property so passing shall be remitted, or, in case the duty has been paid, repaid, and the property shall not be aggregated with any other property passing on such subsequent death for the purpose of determining the rate of estate duty.

(2) This section shall apply whether or not on any such death any property passes to the widow or lineal descendants or lineal ancestors of the deceased.

Short title.

3. This Act may be cited as the Death Duties (Killed in War) Act, 1914.

CHAPTER 77.

An Act to enable orders to be made in connection with the present war for restricting the sale or consumption of intoxicating liquor. [31st August 1914.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Restriction of
the sale or
consumption of
intoxicating
liquor.

1.—(1) The licensing justices for any licensing district may, if they think fit, upon the recommendation of the chief officer of police that it is desirable for the maintenance of order or the suppression of drunkenness in any area, by order direct that the sale or consumption of intoxicating liquor on the premises of any persons holding any retailers' licence in the area, and the supply or consumption of intoxicating liquor in any registered club in the area, shall be suspended while the order is in operation, during such hours and subject to such conditions or exceptions (if any) as may be specified in the order :

Provided that, if any such order suspends the sale, supply, or consumption of intoxicating liquor at an hour earlier than nine at night, the order shall not have effect until approved by the Secretary of State.

(2) If any person acts in contravention of, or fails to comply with, any order under this section he shall be liable on summary conviction in respect of each offence to a fine not exceeding fifty pounds. If any person feels aggrieved by a conviction under this section he may appeal therefrom to quarter sessions in accordance with the Summary Jurisdiction Acts.

(3) The licensing justices shall have power to make an order under this section at their general annual licensing meeting or at any special sessions held by them for the purpose of their duties under the Licensing (Consolidation) Act, 1910, or at any meeting specially called for the purpose under this Act.

10 Edw. 7. &
1 Geo. 5. c. 24.

The clerk to the licensing justices shall specially call such a meeting if an application in writing is made to him for the purpose either by any two of their number or by the chief officer of police for the district.

(4) In the application of this section to the county of London the committee of the compensation authority appointed under section six of the Licensing (Consolidation) Act, 1910, shall be substituted for the licensing justices.

2.—(1) In this Act the expression “retailers’ licence” means any of the retailers’ licences specified in the First Schedule to the Finance (1909–10) Act, 1910, and the expression “chief officer of police”—

Interpretation,
application,
short title, and
duration.
10 Edw. 7. c. 8.

(a) with respect to the city of London, means the Commissioner of the City Police; and

(b) elsewhere in England, has the same meaning as in the Police Act, 1890.

53 & 54 Vict
c. 45.

(2) In the application of this Act to Scotland, the Secretary for Scotland shall be substituted for the Secretary of State, and the licensing court shall be substituted for the licensing justices, and the general half-yearly meeting of the court, or any adjournment thereof, shall be substituted for the general annual licensing meeting; “sheriff-depute” shall be substituted for “chief officer of police”; the reference to an appeal to quarter sessions shall not apply; “summary conviction” means summary conviction in the sheriff court; “intoxicating liquor” means exciseable liquor, and “retailers’ licence” means certificate as defined in Part VII. of the Licensing (Scotland) Act, 1903.

3 Edw. 7. c. 25.

(3) In the application of this Act to Ireland the Lord Lieutenant shall be substituted for the Secretary of State, and the expression “licensing district” means, as respects the police district of Dublin metropolis, that district, and elsewhere in Ireland the petty sessions district. The expression “chief officer of police” means, as respects the police district of Dublin metropolis, either of the commissioners of police for that district,

and elsewhere in Ireland a district inspector of the Royal Irish Constabulary, and the expression "licensing justices" means, as respects the police district of Dublin metropolis, the Recorder of the city of Dublin, and, as respects any other licensing district, two or more justices at petty sessions.

(4) This Act may be cited as the Intoxicating Liquor (Temporary Restriction) Act, 1914.

(5) This Act shall remain in force during the continuance of the present war, and for a period of one month after the close thereof.

CHAPTER 78.

An Act to give, in connexion with the present War, further powers to Courts in relation to the remedies for the recovery of money, and in relation to other similar matters. [31st August 1914.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power of
courts to defer
execution, &c.

1.—(1) From and after the passing of this Act no person shall—

- (a) proceed to execution on, or otherwise to the enforcement of, any judgment or order of any court (whether entered or made before or after the passing of this Act) for the payment or recovery of a sum of money to which this subsection applies, except after such application to such court and such notice as may be provided for by rules or directions under this Act; or
- (b) levy any distress, take, resume, or enter into possession of any property, exercise any right of re-entry, foreclose, realise any security (except by way of sale by a mortgagee in possession), forfeit any deposit, or enforce the lapse of any policy of insurance to which this subsection applies, for the purpose of enforcing the payment or recovery of any sum of money to which this subsection applies, or, in default of the payment or recovery of any such sum of money, except after such application to such court and such notice as may be provided for by rules or directions under this Act.

This subsection shall not apply to any sum of money (other than rent not being rent at or exceeding fifty pounds per annum) due and payable in pursuance of a contract made after the